

CONSTITUTIONAL INTERPRETATION DOCTRINES

METHOD BEFORE DOCTRINE → SEVERABILITY, ECLIPSE AND WAIVER → PITH, ANCILLARY POWER AND... → TERRITORIAL NEXUS → ARTICLE 254 REPUGNANCY AND... → HARMONY, READING AND INVALIDITY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 METHOD BEFORE DOCTRINE

METHOD BEFORE DOCTRINE BINDING PRECEDENT. FACTS MUST SATISFY EVERY OPERATIVE ELEMENT. FREE-STANDING ARTICLE OR SLOGAN.

CONSTITUTIONAL BASIS / ARTICLE

- TEXT → STRUCTURE → HISTORY → PURPOSE → BINDING PRECEDENT.
- TRIGGER → TEST → CASE/YEAR → EFFECT → LIMIT → REMEDY.

POWER / PROCEDURE

- APPLICATION → facts must satisfy every operative element.
- DOCTRINE != free-standing Article or slogan.

CHECK / LIMIT

- TEXT → STRUCTURE → HISTORY → PURPOSE → BINDING PRECEDENT.
- TRIGGER → TEST → CASE/YEAR → EFFECT → LIMIT → REMEDY.

FEDERAL / RIGHTS IMPACT

- APPLICATION → facts must satisfy every operative element.
- DOCTRINE != free-standing Article or slogan.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: APPLICATION → facts must satisfy every operative element.

01

STAGE 01 SEVERABILITY, ECLIPSE AND WAIVER

SEVERABILITY, ECLIPSE AND WAIVER R.M.D. CHAMARBAUGWALA V. UNION OF INDIA (1957) SEPARABLE WORKABLE REMAINDER. BHIKAJI NARAIN DHAKRAS (1955) PRE-CONSTITUTION LAW DORMANT TO CONFLICT EXTENT. BASHESCHAR NATH (1958)

CONSENT CANNOT VALIDATE UNCONSTITUTIONAL STATE ACTION. OBJECT CHECK

R.M.D. Chamarbaugwala v. Union of India (1957) → separable workable remainder.

Bhikaji Narain Dhakras (1955) → pre-Constitution law dormant to conflict extent.

Basheshar Nath (1958) → consent cannot validate unconstitutional State action.

OBJECT CHECK → part of law / enforceability / individual consent.

CONSTITUTIONAL BASIS / ARTICLE

- R.M.D. Chamarbaugwala v. Union of India (1957) → separable workable remainder.
- Bhikaji Narain Dhakras (1955) → pre-Constitution law dormant to conflict extent.

POWER / PROCEDURE

- Basheshar Nath (1958) → consent cannot validate unconstitutional State action.
- OBJECT CHECK → part of law / enforceability / individual consent.

CHECK / LIMIT

- R.M.D. Chamarbaugwala v. Union of India (1957) → separable workable remainder.
- Bhikaji Narain Dhakras (1955) → pre-Constitution law dormant to conflict extent.

FEDERAL / RIGHTS IMPACT

- Basheshar Nath (1958) → consent cannot validate unconstitutional State action.
- OBJECT CHECK → part of law / enforceability / individual consent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: OBJECT CHECK → part of law / enforceability / individual consent.

02

STAGE 02 PITH, ANCILLARY POWER AND COLOURABILITY

PITH, ANCILLARY POWER AND COLOURABILITY PRAFULLA KUMAR MUKHERJEE (1947) TRUE NATURE AND CHARACTER. STATE OF BOMBAY V. F.N. BALSARA (1951) INCIDENTAL OVERLAP EFFECTIVE ENTRY. K.C. GAJAPATI NARAYAN DEO (1953) DISGUISED LACK OF COMPETENCE.

Prafulla Kumar Mukherjee (1947) → true nature and character.

State of Bombay v. F.N. Balsara (1951) → incidental overlap / effective entry.

K.C. Gajapati Narayan Deo (1953) → disguised lack of competence.

MOTIVE alone is insufficient.

CONSTITUTIONAL BASIS / ARTICLE

- Prafulla Kumar Mukherjee (1947) → true nature and character.
- State of Bombay v. F.N. Balsara (1951) → incidental overlap / effective entry.

POWER / PROCEDURE

- K.C. Gajapati Narayan Deo (1953) → disguised lack of competence.
- MOTIVE alone is insufficient.

CHECK / LIMIT

- Prafulla Kumar Mukherjee (1947) → true nature and character.
- State of Bombay v. F.N. Balsara (1951) → incidental overlap / effective entry.

FEDERAL / RIGHTS IMPACT

- K.C. Gajapati Narayan Deo (1953) → disguised lack of competence.
- MOTIVE alone is insufficient.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: K.C. Gajapati Narayan Deo (1953) → disguised lack of competence.

03

STAGE 03 TERRITORIAL NEXUS

TERRITORIAL NEXUS ART 245 TERRITORIAL COMPETENCE. STATE OF BOMBAY V. R.M.D. CHAMARBAUGWALA (1957) REAL AND SUFFICIENT NEXUS. CONNECTION BETWEEN STATE, SUBJECT AND IMPOSED LIABILITY/OPERATION. REMOTE OR ILLUSORY NEXUS FAILS.

CONSTITUTIONAL BASIS / ARTICLE

- ART 245 → territorial competence.
- State of Bombay v. R.M.D. Chamarbaugwala (1957) → real and sufficient nexus.

POWER / PROCEDURE

- TEST: connection between State, subject and imposed liability/operation.
- REMOTE OR ILLUSORY nexus fails.

CHECK / LIMIT

- ART 245 → territorial competence.
- State of Bombay v. R.M.D. Chamarbaugwala (1957) → real and sufficient nexus.

FEDERAL / RIGHTS IMPACT

- TEST: connection between State, subject and imposed liability/operation.
- REMOTE OR ILLUSORY nexus fails.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TEST: connection between State, subject and imposed liability/operation





